

FROM Robert Samuel White  
TO Director Lisa Sumption  
Cc [Park Supervisor]; [Volunteer Services Lead]; [Park Manager]; [Program Manager];  
Deputy Director JR Collier; OPRD Commissioners; Governor Kotek; [Kotek Campaign  
Chair]; Risk Management; OSP Risk  
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SUBJECT **The choices are still yours.**  
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Director Sumption,

This letter is addressed to you because the choices have been yours from the beginning, and they are still yours today. You may route it to counsel and tell yourself the matter has left your hands. It has not. Every choice in this record was made under your authority, and the next one will be too.

I see your institution's strategy. I have seen it from the beginning, because it has only ever been one thing: wait. Wait for the letters to stop, wait for the person to stall, wait for the man with no salary and no lawyer to run out of whatever keeps him going. Route what can be routed, ignore what can be ignored, characterize what cannot be ignored, scare him, and wait.

So look at the ledger of how that has gone.

You dismissed me without process. I documented it, and the documentation became an archive. You expelled me in writing and named my speech as the reason. That letter became the cornerstone of a constitutional case, in your agency's own words, on your agency's own letterhead. Your deputy tried to contain my correspondence. The containment directive is published, and it reads as what it was. You closed communication with a letter that assigned me feelings instead of addressing evidence. Your closure became the final entry in a register of everything you never answered. Your Emergency Manager reported my letters to the police. That referral produced your state's own file, and the file proves what followed: a press captain ordered a threat assessment over publicity; detectives reviewed my archive, found nothing, and came anyway; officers gathered satellite-view map screenshots marking my home and my workplace, reaching into my standing with a second institution they had to know this would disrupt; my supervisor there was told to conceal it from me; and the stated basis for all of it was "publicly airing grievances." The police withheld the record; withholding produced an Attorney General petition, a fee refund, and a production. The visit itself produced a tort claim in which you are named in your individual capacity.

Seventeen months of escalation, and every single act became evidence. You have never taken an action

against me that did not make the record stronger. It was never going to go another way. That is what happens when one side documents and the other side hopes.

Now look at who is still standing where I stood.

Your parks run on volunteers. They clean the facilities, maintain the trails, meet the visitors, and hold the ground you cannot staff. Many of them live on the land they steward; the position is their housing. The position is their community. And they serve with no union, no human resources access, no grievance process, no appeal, no progressive discipline, and no requirement that a reason ever be given. A supervisor's account of them is the only account, and there is no mechanism by which it can be questioned. When this happened to me, there was no one I could turn to, so I pressed record. Every volunteer in your system is serving this morning under exactly the conditions that produced everything in this record. You know that, because your own Volunteer Dismissal Guidance has no category for what was done to me. There was no process to violate because none was followed.

And the violation is not history. The bar you maintain is enforced every morning, including this one. Each day it stands is a new act, by officials on written notice, and the count is published. Courts do not make people wait years to stop an ongoing First Amendment violation; the loss of those freedoms for even minimal periods is irreparable injury as a matter of law. Nor does the case run on my money. It runs on 42 U.S.C. §1988: a constitutional lawyer needs confidence in the merits, and your institutions spent two years manufacturing it before handing me the proof in your own records. Everything in this record was built while my attention was pointed elsewhere. It has not yet turned to finding counsel. Every month you wait, the file gets better organized and easier to take on contingency. And the records clocks started this week run on statutes, not on my energy. Time is not your shelter. It is the thing you are being billed for.

So here are your remaining options, all of them.

You can continue the silence. The register grows, the counter runs, and every day is documented. You can fight it in court, where your own production is the exhibit list, your employees are individual defendants, and if I prevail the state pays my attorney.

You can buy the case. I would let you. What you cannot buy is the record. It will not be sealed, redacted, or quieted at any price, because it is not mine to sell -- it exists for the next volunteer standing where I stood. I will not allow you to hide what you did, and I will keep showing what your institutional process actually looks like, in public, for as long as it looks like this.

Or you can tell the truth. The price has been the same since the first email, and it has never changed: if you tell the truth, I document it, and I move on. Acknowledge what was done -- the dismissal without process, the expulsion for speech, the referral, the visit. Withdraw the bar. And build what should have

existed before I ever arrived: a real process that protects your volunteers. Written standards. Notice. A hearing before removal from the ground a person lives on. An appeal that reaches someone other than the supervisor whose account is in question. Protection from retaliation for documentation. The ordinary machinery of fairness your agency extends to every employee and has never once extended to the people who make your parks possible.

Until that process exists, the archive is the process -- the one you failed to build, running in public.

Every option above is a choice, and every one of them is yours. If they are not -- if you have truly handed them to counsel, to process, to whoever routes letters like this one -- then answer a simpler question first: what are you still doing in that chair?

Respectfully,

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